and the party ſuffering ſhall alſo have his private action againſt the perſon committing, and all his aiders, adviſers and abettors, and ſhall recover treble coſts; beſides his damages, which no jury ſhall aſſeſs at leſs than five hundred pounds.

THE law is in this reſpect ſo benignly and liberally conſtrued for the benefit of the ſubject, that, though *within* the realm the king may command the attendance and ſervice of all his liegemen, yet he cannot ſend any man *out of* the realm, even upon the public ſervice: he cannot even conſtitute a man lord deputy or lieutenant of Ireland againſt his will, nor make him a foreign embaſſador [o]. For this might in reality be no more than an honorable exile.

III. THE third abſolute right, inherent in every Engliſhman, is that of property: which conſiſts in the free uſe, enjoyment, and diſpoſal of all his acquiſitions, without any control or diminution, ſave only by the laws of the land. The original of private property is probably founded in nature, as will be more fully explained in the ſecond book of the enſuing commentaries: but certainly the modifications under which we at preſent find it, the method of conſerving it in the preſent owner, and of tranſlating it from man to man, are entirely derived from ſociety; and are ſome of thoſe civil advantages, in exchange for which every individual has reſigned a part of his natural liberty. The laws of England are therefore, in point of honor and juſtice, extremely watchful in aſcertaining and protecting this right. Upon this principle the great charter [p] has declared that no freeman ſhall be diſſeiſed, or diveſted, of his freehold, or of his liberties, or free cuſtoms, but by the judgment of his peers, or by the law of the land. And by a variety of antient ſtatutes [q] it is enacted, that no man's lands or goods ſhall be ſeiſed into the king's hands, againſt the great charter, and the law of the land; and that no man ſhall be diſinherited, nor put out of his franchiſes or freehold,

[o] 2 Inſt. 47.
[p] c. 29.
[q] 5 Edw. III. c. 9. 25 Edw. III. ſt. 5. c. 4. 28 Edw. III. c. 3.

unleſs

unleſs he be duly brought to anſwer, and be forejudged by courſe of law; and if any thing be done to the contrary, it ſhall be redreſſed, and holden for none.

So great moreover is the regard of the law for private property, that it will not authorize the leaſt violation of it; no, not even for the general good of the whole community. If a new road, for inſtance, were to be made through the grounds of a private perſon, it might perhaps be extenſively beneficial to the public; but the law permits no man, or ſet of men, to do this without conſent of the owner of the land. In vain may it be urged, that the good of the individual ought to yield to that of the community; for it would be dangerous to allow any private man, or even any public tribunal, to be the judge of this common good, and to decide whether it be expedient or no. Beſides, the public good is in nothing more eſſentially intereſted, than in the protection of every individual's private rights, as modelled by the municipal law. In this, and ſimilar caſes the legiſlature alone can, and indeed frequently does, interpoſe, and compel the individual to acquieſce. But how does it interpoſe and compel? Not by abſolutely ſtripping the ſubject of his property in an arbitrary manner; but by giving him a full indemnification and equivalent for the injury thereby ſuſtained. The public is now conſidered as an individual, treating with an individual for an exchange. All that the legiſlature does is to oblige the owner to alienate his poſſeſſions for a reaſonable price; and even this is an exertion of power, which the legiſlature indulges with caution, and which nothing but the legiſlature can perform.

Nor is this the only inſtance in which the law of the land has poſtponed even public neceſſity to the ſacred and inviolable rights of private property. For no ſubject of England can be conſtrained to pay any aids or taxes, even for the defence of the realm or the ſupport of government, but ſuch as are impoſed by his own conſent, or that of his repreſentatives in parliament. By the ſtatute 25 Edw. I. c. 5 and 6. it is provided, that the king ſhall

ſhall not take any aids or taſks, but by the common aſſent of the realm. And what that common aſſent is, is more fully explained by 34 Edw. I. ſt. 4. cap. 1. which enacts, that no talliage or aid ſhall be taken without aſſent of the arch-biſhops, biſhops, earls, barons, knights, burgeſſes, and other freemen of the land[r]: and again by 14 Edw. III. ſt. 2. c. 1. the prelates, earls, barons, and commons, citizens, burgeſſes, and merchants ſhall not be charged to make any aid, if it be not by the common aſſent of the great men and commons in parliament. And as this fundamental law had been ſhamefully evaded under many ſucceeding princes, by compulſive loans, and benevolences extorted without a real and voluntary conſent, it was made an article in the petition of right 3 Car. I, that no man ſhall be compelled to yield any gift, loan, or benevolence, tax, or ſuch like charge, without common conſent by act of parliament. And, laſtly, by the ſtatute 1 W. & M. ſt. 2. c. 2. it is declared, that levying money for or to the uſe of the crown, by pretence of prerogative, without grant of parliament; or for longer time, or in other manner, than the ſame is or ſhall be granted, is illegal.

IN the three preceding articles we have taken a ſhort view of the principal abſolute rights which appertain to every Engliſhman. But in vain would theſe rights be declared, aſcertained, and protected by the dead letter of the laws, if the conſtitution had provided no other method to ſecure their actual enjoyment. It has therefore eſtabliſhed certain other auxiliary ſubordinate rights of the ſubject, which ſerve principally as barriers to protect and maintain inviolate the three great and primary rights, of perſonal ſecurity, perſonal liberty, and private property. Theſe are,

1. THE conſtitution, powers, and privileges of parliament, of which I ſhall treat at large in the enſuing chapter.

[r] See the hiſtorical introduction to the great charter, &c, *ſub anno* 1297; wherein it is ſhewn that this ſtatute *de talliagio non concedendo*, ſuppoſed to have been made in 34 Edw. I, is in reality nothing more than a ſort of tranſlation into Latin of the *confirmatio cartarum*, 25 Edw. I, which was originally publiſhed in the Norman language.

2. THE